

- Disclosure of SAR information to certain governmental authorities or other examining authorities that are otherwise entitled by law to receive SAR information or to examine for or investigate suspicious activity;
- Disclosure of the underlying facts, transactions, and documents upon which a FinCEN SAR is based; and
- For those institutions regulated by a Federal functional regulator (Federal bank regulatory agencies, the Securities and Exchange Commission (SEC), and the Commodity Futures Trading Commission (CFTC)), the sharing of SAR information within an institution's corporate organizational structure, for purposes that are consistent with the Bank Secrecy Act, as determined by regulation or guidance.

Prohibition on Disclosures by Government Authorities:

Federal law (31 U.S.C. 5318(g)(2)) also provides that an officer or employee of any Federal, state, local, tribal, or territorial government within the United States who has knowledge that such report was made, may not disclose to any person involved in the transaction that the transaction has been reported, other than as necessary to fulfill the official duties of such officer or employee. FinCEN's regulations clarify that "official duties" must be consistent with Title II of the Bank Secrecy Act and shall not include the disclosure of a SAR, or any information that would reveal the existence of a SAR, in response to a request for disclosure of non-public information or a request for use in a private legal proceeding, including a request pursuant to 31 CFR § 1.11.

FinCEN SAR Filing Instructions:

1. Who Must File: Certain financial institutions operating in the United States shall file with FinCEN, to the extent and in the manner required by 31 CFR Chapter X and 12 CFR §§ 21.11, 163.180, 208.62, 353.3, and 748.1, a report of any suspicious transaction relevant to a possible violation of law or regulation. The following financial institutions are required to file a FinCEN SAR: Banks (31 CFR §1020.320) including Bank and Financial Holding Companies (12 CFR § 225.4); Casinos and Card Clubs (31 CFR § 1021.320); Money Services Businesses (31 CFR § 1022.320); Brokers or Dealers in Securities (31 CFR § 1023.320); Mutual Funds (31 CFR § 1024.320); Insurance Companies (31 CFR § 1025.320); Futures Commission Merchants and Introducing Brokers in Commodities (31 CFR § 1026.320); and Residential Mortgage Lenders and Originators (31 CFR § 1029.320).

2. Filing Deadlines: A FinCEN SAR shall be filed no later than 30 calendar days after the date of the initial detection by the reporting financial institution of facts that may constitute a basis for filing a report. If no suspect is identified on the date of such initial detection, a financial institution may delay filing a FinCEN SAR for an additional 30 calendar days to identify a suspect, but in no case shall reporting be delayed more than 60 calendar days after the date of such initial detection. In situations involving violations that require immediate attention, such as terrorist financing or ongoing money laundering schemes, the financial institution shall

immediately notify by telephone an appropriate law enforcement authority in addition to filing timely a FinCEN SAR. Financial institutions wishing voluntarily to report suspicious transactions that may relate to terrorist activity may call FinCEN's Financial Institutions Hotline at 1-866-556-3974 in addition to filing timely a FinCEN SAR.

3. Filing Requirements for Financial Institutions: A financial institution must report any transaction that requires reporting under the terms of 31 CFR Chapter X if the transaction is conducted or attempted by, at, or through the financial institution and involves or aggregates at least \$5,000 (\$2,000 for money services businesses, except as provided in Section 6 of this document) and the financial institution knows, suspects, or has reason to suspect that the transaction or pattern of transactions of which the transaction is a part:

- Involves funds derived from illegal activity or is intended or conducted in order to hide or disguise funds or assets derived from illegal activity (including, without limitation, the ownership, nature, source, location, or control of such funds or assets) as part of a plan to violate or evade any Federal law or regulation or to avoid any transaction reporting requirement under Federal law or regulation;
- Is designed, whether through structuring or other means, to evade any requirement of 31 CFR Chapter X or any other regulation promulgated under the Bank Secrecy Act, Public Law 91-508, as amended, codified at 12 U.S.C 1829b, 12 U.S.C. 1951-1959, and 31 U.S.C. 5311-5332;
- Has no business or apparent lawful purpose or is not the sort in which the particular customer would normally be expected to engage, and the financial institution knows of no reasonable explanation for the transaction after examining the available facts, including the background and possible purpose of the transaction, or
- Involves the use of the financial institution to facilitate criminal activity.

4. Additional Filing Instructions for Banks: In addition to the above requirements, a bank (as defined in 31 CFR § 1010.100) must file a FinCEN SAR for activity (as required by 31 CFR § 1020.320 and 12 CFR §§ 21.11, 163.180, 208.62, 353.3, and 748.1) involving:

- **Insider abuse involving any amount.** Whenever the bank detects any known or suspected Federal criminal violations, or pattern of criminal violations, committed or attempted against the financial institution or involving a transaction or transactions conducted through the financial institution, where the bank believes that it was either an actual or potential victim of a criminal violation, or series of criminal violations, or that the bank was used to facilitate a criminal transaction, and the bank has a substantial basis for identifying one of its directors, officers, employees, agents or other institution-affiliated parties as having committed or aided in the commission of a criminal act regardless of the amount involved in the violation.

- **Violations aggregating \$5,000 or more where a suspect can be identified.** Whenever the bank detects any known or suspected Federal criminal violation, or pattern of criminal violations, committed or attempted against the bank or involving a transaction or transactions conducted through the bank and involving or aggregating \$5,000 or more in funds or other assets, where the bank believes that it was either an actual or potential victim of a criminal violation, or series of criminal violations, or that the bank was used to facilitate a criminal transaction, and the bank has a substantial basis for identifying a possible suspect or group of suspects. If it is determined prior to filing this report that the identified suspect or group of suspects has used an “alias,” then information regarding the true identity of the suspect or group of suspects, as well as alias identifiers, such as drivers’ licenses or social security numbers, addresses and telephone numbers, must be reported.
- **Violations aggregating \$25,000 or more regardless of a potential suspect.** Whenever the bank detects any known or suspected Federal criminal violation, or pattern of criminal violations, committed or attempted against the bank or involving a transaction or transactions conducted through the bank and involving or aggregating \$25,000 or more in funds or other assets, where the bank believes that it was either an actual or potential victim of a criminal violation, or series of criminal violations, or that the bank was used to facilitate a criminal transaction, even though there is no substantial basis for identifying a possible suspect or group of suspects.

5. Voluntary FinCEN SAR Filings: Financial institutions may also file with FinCEN a report of any suspicious transaction that it believes is relevant to the possible violation of any law or regulation but whose reporting is not required by 31 CFR Chapter X. A voluntary filing does not relieve a financial institution from the responsibility of complying with any other reporting requirements imposed by the SEC, the CFTC, a self-regulatory organization (SRO) (as defined in section 3(a)(26) of the Securities Exchange Act of 1934, 15 U.S.C. 78c (a)(26)), or any Registered Futures Association (RFA) or Registered Entity (RE) (as these terms are defined in the Commodity Exchange Act, 7 U.S.C. 21 and 7 U.S.C. 1a(29)).

6. Exceptions: The following are exceptions to the FinCEN SAR reporting requirements:

- A bank, casino, broker or dealer in securities (BD), futures commission merchant (FCM), or introducing broker in commodities (IB-C) is not required to file a FinCEN SAR for a robbery or burglary committed or attempted against the financial institution when the robbery or burglary is reported to appropriate law enforcement authorities.
- A FinCEN SAR is not required to be filed for lost, missing, counterfeit, or stolen securities that are reported pursuant to the requirements of 17 CFR § 240.17f-1.

- A BD is not required to file a FinCEN SAR on violations of any of the Federal securities laws or the rules of a SRO by the BD or any of its officers, directors, employees or other registered representatives, other than a violation of 17 CFR § 240.17a-8 or 17 CFR § 405.4, so long as such violation is appropriately reported to the SEC or an SRO.
- An FCM or an IB-C, or any of its officers, directors, employees or associated persons, is not required to file a FinCEN SAR for a violation of the Commodity Exchange Act (7 U.S.C. 1 *et seq.*), the regulations of the CFTC (17 CFR Chapter 1), or the rules of any RFA or RE (as those terms are defined in the Commodity Exchange Act, 7 U.S.C. 21 and 7 U.S.C. 1a(29)), as long as such violation is appropriately reported to the CFTC, an RFA, or RE. This exception does not apply to violations of 17 CFR § 42.2.
- An insurance company is not required to report the submission to it of false or fraudulent information to obtain a policy or make a claim, unless the company has reason to believe that that the false or fraudulent submission relates to money laundering or terrorist financing.
- An issuer of money orders or traveler's checks is not required to report a transaction or pattern of transactions when the transactions were identified through a review of clearance records or other similar records and the transaction amount or aggregated transaction amount involves funds or other assets of less than \$5,000.

7. Additional Reporting: The Bank Secrecy Act requires financial institutions to file a Currency Transaction Report (CTR) in accordance with the Department of the Treasury's implementing regulations (31 CFR § 1010.310) whenever a currency transaction exceeds \$10,000. If a currency transaction exceeds \$10,000 and is otherwise reportable as suspicious activity, the institution must file both a CTR (reporting the currency transaction) and a FinCEN SAR (reporting the suspicious activity). If a currency transaction is \$10,000 or less and is otherwise reportable as a suspicious activity, the institution should only file a FinCEN SAR. Appropriate records must be maintained in each case. Residential Mortgage Lenders and Originators are required to file Form 8300, Report of Cash Payments Over \$10,000 Received in a Trade or Business, instead of a CTR.

FinCEN SAR Electronic Filing Instructions

General Instructions:

1. Filing Reports: This report should be E-filed through the Financial Crime Enforcement Network (FinCEN) BSA E-Filing System. Go to <http://bsaefiling.fincen.treas.gov> to register if not already registered. Financial institutions that file reports individually will use FinCEN's discrete FinCEN Suspicious Activity Report (FinCEN SAR) to file their reports. Financial institutions that use batch filing or system-to-system filing to transmit multiple reports must transmit files that conform to the requirements of FinCEN's "General Specifications for

Electronic Filing of Bank Secrecy Act (BSA) Reports” (General Specifications) and “FinCEN Suspicious Activity Report (FinCEN SAR) Electronic Filing Requirements.”

2. Recording Information: Complete each FinCEN SAR by providing as much information as possible. Although all items should be completed fully and accurately, items marked with an asterisk (*) must be completed even when the required data are unknown. Filers must follow the electronic filing instructions for these items by providing the required data or, if instructions permit, by checking the box “Unknown” to indicate that the required data was unknown. Items that do not begin with an asterisk must be completed if the data are known and will be left blank if the data are unknown. If an item’s instructions differ from this general instruction, the item instructions must be followed. These instructions supersede all prior SAR instructions and FinCEN guidance on use of special responses in SAR items when the data are unknown or not available in an electronic filing. Therefore, the use of special responses such as “UNKNOWN,” “NONE,” “NOT APPLICABLE,” or “XX” and their variants is prohibited in the FinCEN SAR.

NOTE: Throughout these instructions the phrase “check box” and similar wording is used to denote checking an appropriate box in certain data items on the discrete FinCEN SAR. This is deemed equivalent to instructions in the Electronic Filing Requirements to enter appropriate codes in the same data items in transmission files. For example, the requirement to check box 1 “Initial report” in the discrete FinCEN SAR is the equivalent of entering code “A” in “Type of Filing” in the Electronic Filing Requirements Suspicious Activity Information (3A) Record. In some discrete FinCEN SAR data items check boxes have been replaced by drop-down lists.

NOTE: Throughout these instructions there are requirements to complete items multiple times in a discrete FinCEN SAR if the filer has multiple entries for that item. This is deemed equivalent to completing multiple records for that item in the Electronic Filing Requirements. For example, these instructions direct filers to complete multiple Item 6 “Alternate name” fields if the filer has knowledge of multiple alternate names for a subject. This is equivalent to a batch filer completing multiple Subject Alternative Name (4D) Records for the same subject.

3. Corrected/Amended Reports: A corrected report on a previously-filed FinCEN SAR or prior SAR versions must be filed whenever errors are discovered in the data reported in that FinCEN SAR. An amended report must be filed on a previously-filed FinCEN SAR or prior SAR versions whenever new data about a reported suspicious activity is discovered and circumstances will not justify filing a continuing report (see General Instruction 4). Both corrected and amended reports must be completed in their entirety, with the necessary corrections or amendments made to the data. In both cases box 1b “Correct/Amend prior report” must be checked. If known, the prior report’s Document Control Number (DCN) or BSA Identifier (BSA ID) must be entered in field 1e. If the prior report’s DCN or BSA ID is unknown, field 1e should be zero-filled. All corrections or amendments must be described completely at the beginning of the Part V Suspicious Activity Information – Narrative section. If a FinCEN SAR is filed to correct or amend a prior SAR version, the FinCEN SAR must be completed in its entirety. This includes FinCEN SAR items that apply to the suspicious activity but were not

present on the prior SAR version. FinCEN SAR items not on the prior SAR version need not be described in the narrative. BSA IDs, which replaced DCNs, are provided in acknowledgement records sent to member financial institutions by the BSA E-Filing System.

4. Continuing Reports: A continuing report should be filed on suspicious activity that continues after an initial FinCEN SAR is filed. Financial institutions with SAR requirements may file SARs for continuing activity after a 90 day review with the filing deadline being 120 days after the date of the previously related SAR filing. Financial institutions may also file SARs on continuing activity earlier than the 120 day deadline if the institution believes the activity warrants earlier review by law enforcement. Continuing reports must be completed in their entirety, including the information about all subjects involved in the suspicious activity and all financial institutions where the activity occurred. The continuing report Part V narrative should include all details of the suspicious activity for the 90-day period encompassed by the report, and only such data from prior reports as is necessary to understand the activity. Do not reproduce the narratives from prior reports in the continuing report. Provide both the dollar amount involved in the suspicious activity for the 90-day period in Item 26 and the cumulative dollar amount for the current and all prior related reports in Item 28. If continuing losses are involved for any financial institution recorded in Part III, record the 90-day loss in Item 63 and the cumulative loss in Part V.

5. Joint Report: A FinCEN SAR may be jointly filed when two or more distinct financial institutions collaborate in filing a single FinCEN SAR on suspicious activity involving all of the collaborating financial institutions. Financial institutions are “distinct” for this purpose when they are different legal entities; a financial institution is not distinct from its own branches. Joint filing of a single FinCEN SAR is prohibited when any of the Part I “Subject Information” subjects of the would-be jointly filed FinCEN SAR have a box in Item 21 checked that identifies the subject as a director, employee, officer, or owner/controlling shareholder of the filing institution or a would-be joint filer. In that case separate FinCEN SARs must be filed by each institution. To be a jointly-filed FinCEN SAR, box 1d “Joint report” must be checked. In addition, the filing institution listed in Part IV “Filing Institution Contact Information” must identify in Part V “Suspicious Activity Information – Narrative” which Part III “Information about Financial Institution Where Activity Occurred” institutions are joint filers. The filing institution must include joint filer contact information in Part V, along with a description of the information provided by each joint filer. Record joint filer information in Part III Items 47 through 63 and joint filer branch information in Part III Items 64 through 77. Filing a joint FinCEN SAR does not relieve joint filers of the responsibility to report information about the suspicious activity that was not included in the joint filing. A filing institution cannot designate another institution as a joint filer unless the designated joint filer is aware of and approves the FinCEN SAR filing in its entirety. A filer that designates another institution as a joint filer without gaining that institution’s agreement to the joint filing and approval of the contents of the joint filing may have committed a willful violation of the Bank Secrecy Act, if the improper designation leads to the disclosure of the SAR filing to a person not entitled to information

about the filing. Both filers and joint filers are required to keep copies of the FinCEN SAR and their own supporting documentation for five (5) years after the date of filing.

6. Supporting Documentation: Filers can include a single Microsoft Excel compatible comma separated values (CSV) file with no more than one megabyte of data as an attachment to the FinCEN SAR. The contents of this file must be described in Part V. This file would be most suitable for documenting transaction records that are too numerous to record in Part V. Do not include any other supporting documentation with the FinCEN SAR. Instead, describe in Part V other supporting documentation not included in the file. Filers must retain all supporting documentation or a business record equivalent for five (5) years from the date of the report (31 CFR § 1010.430). All supporting documentation (such as copies of instruments; receipts; sale, transaction or clearing records; photographs; and surveillance audio or video recordings) must be made available to appropriate authorities upon request. See Attachment D for information on attaching comma separated (.CSV) files to a FinCEN SAR filing.

7. Addresses: For addresses in the U.S., Canada, or Mexico enter the permanent street address, city, two or three letter state/territory/province code, ZIP Code or foreign postal code, and two letter country code for the individual or entity recorded in Part I, Part III, or Part IV. Provide the apartment number or suite number, if known, following the street address. A non-location address such as a post office box or rural route number should be used only if no other street address information is available. ZIP Codes must be five or nine digits. ZIP Codes and foreign postal codes must be entered without formatting or special characters such as spaces or hyphens. For example, the ZIP Code 12354-6120 would be entered as 123546120. The foreign postal code HKW 702 would be entered HKW702. For other foreign addresses enter the street address, city, postal code, and two letter country code or address equivalent. If a foreign address contains other address information that does not conform to the FinCEN SAR address format, record equivalent address information in the FinCEN SAR address items and the full address in Part V. Complete any address item that is known, even if the complete address is unknown. No abbreviations are permitted in city names, which must be completely spelled out. A U.S. city name must match the city name used by the U.S. Postal Service for the associated state and ZIP Code. For U.S. address use only the authorized U.S. Postal Service state, territory, or military address abbreviations found at <https://www.usps.com/ship/official-abbreviations.htm>. For Canadian provinces and territories use the Canada Post Corporation codes found at <http://www.canadapost.ca/tools/pg/manual/PGaddress-e.asp#1380608>. For Mexican states and territories use the ISO 3166-2 three-letter codes found at http://www.commondatahub.com/live/geography/state_province_region/iso_3166_2_state_codes. For all countries use the ISO 3166-1 two-letter country codes found at http://www.iso.org/iso/country_names_and_code_elements. Note: The ISO 3166-1 country list includes entries for all U.S. territories. Do not use these U.S. territory entries, which match the U.S. Postal Service abbreviations required in state fields, in any country field.

8. Telephone Numbers: Record all telephone numbers, both foreign and domestic, as a single number string without formatting or special characters such as parentheses or hyphens. For

example, a number in the format (NNN) NNN-NNNN would be recorded as NNNNNNNNNN. Indicate the type of telephone number provided (home, work, mobile, or fax) by checking the appropriate box. Provide the telephone extension number if known. Telephone numbers that are part of the North American Numbering Plan used by the U.S., Canada, many Caribbean countries, and current/former U.S. Pacific island protectorates must consist of an area code and seven-digit telephone number. Other foreign telephone numbers should include the country number code. If only a partial telephone number is known record that number in the phone number item and explain in Part V that the entry is a partial number.

9. Identifying Numbers: Enter all identifying numbers as a single text string without formatting or special characters such as hyphens or periods. An identifying number in the format NNN-NN-NNNN would be entered as NNNNNNNNNN. Such numbers include alien registration, CRD, CUSIP®, driver's license, state identification, EIN, IARD, ITIN, passport, RSSD, SEC ID, and SSN.

10. Monetary Amounts: Record all monetary amounts in U.S. Dollars rounded up to the next whole dollar. The amount \$5,265.25 would be recorded as \$5,266. If the amount involves a foreign currency, record the currency name, amount, and country of origin in Part V. When converting a foreign currency to U.S. Dollars use an exchange rate for the date or dates the foreign currency was involved in the suspicious activity.

11. Prohibited Words and Phrases: Do not use the following words or variations of these words in text fields, other than in Part V:

- a. AKA
- b. COMPUTER GENERATED
- c. CUSTOMER
- d. DBA
- e. NON CUSTOMER
- f. NONE
- g. NOT APPLICABLE
- h. OTHER
- i. SAME
- j. SAME AS ABOVE
- k. SEE ABOVE
- l. SEE NARRATIVE
- m. SIGNATURE CARD
- n. T/A
- o. UNKNOWN
- p. VARIOUS
- q. XX

12. Name Editing Instructions: Because many names do not consist of a single first name, middle name, and last name, care must be taken to ensure these names are entered properly in the BSA SAR. This is especially important when there are separate fields for the last name, first name, and middle name. Some names have multiple surnames (family names) or multiple given names that do not include a middle name. Others may not be written in [first name] [middle name] [last name] order. Multiple surnames must be entered in the last name field. For example, Hispanic names may be written in the order of given name, father's last name, and mother's last name, e.g., "Juan Vega Santiago." Thus the surname "VEGA SANTIAGO" would be entered in the last name field with "JUAN" entered in the first name field. Some Hispanic surnames consist of three names (e.g., father's last name, mother's last name, and husband's father's last name in the case of a married woman). In that case all three would be entered in a last name field. Hispanic names do not have middle names, so a multiple Hispanic given name such as "Rosa Maria" would be recorded in the first name field. In some cultures names consist of multiple first names and a single family name, not necessarily in (first name) (last name) order. For example, the Korean name "Kim, Chun Nam" consists of the family name "Kim" and the first name "Chun Nam" separated by a comma and space. There is no middle name. In this case "KIM" would be entered in the last name field and "CHUN NAM" would be entered in the first name field. Nothing is entered in the middle name field. When an individual name is entered in a single name field it should be entered in [first name] [middle name] [last name] order regardless of any foreign naming conventions. Thus, "Kim, Chun Nam" would be entered as "CHUN NAM KIM" in a single name field. Punctuation and special characters should be used in names only when they are part of the name. For example, the period in "Expedia.Com" should be included because it is part of the name. Placing a period after a middle initial would be prohibited because the period is not part of the middle name. Abbreviations in names are prohibited unless an abbreviation is part of a legal name. Entry of middle initials is permitted when a middle name is unknown. A name suffix may be abbreviated, i.e. Junior can be JR, Senior can be SR, the Third can be III, etc.

Item Instructions

NOTE: Critical fields are identified with the * symbol in front of the data element number.

----- Type of Filing -----

- * 1. Check all that apply:
- a. Initial report
 - b. Correct/Amend prior report
 - c. Continuing activity report
 - d. Joint report
 - e. Prior report Document Control Number/BSA Identifier if items 1b or 1c are checked

Item *1 Type of Filing: Check box 1a "Initial report" if this is the first report filed on the suspicious activity. FinCEN SARs filed as a result of a historical or other review of past transactional activity, either directed by a regulating authority or conducted as a financial

institution initiative, must always be initial reports. Check box 1b "Correct/Amend prior report" if the report corrects or amends a previously-filed report. Check box 1c "Continuing activity report" if this report involves suspicious activity reported on one or more previous reports. Continuing reports should be filed at least every 90 days on continuing suspicious activity. If this report is being jointly filed with another financial institution, check the appropriate box 1a, 1b, or 1c and box 1d "Joint report." Filers must clearly identify in Part V which Part III financial institutions are the joint filers on the FinCEN SAR. If box 1b or 1c is checked, enter in field 1e the Document Control Number (DCN) or the BSA Identifier (BSA ID) assigned to the previous SAR by FinCEN. If the DCN or BSA ID is unknown, enter zeros in place of the unknown number. See General Instructions 3 through 5 for additional information on Type of Filing.

----- Part I: Subject Information -----

Part I Subject Information: Complete a Part I section on each known subject involved in the suspicious activity. Persons who are victims of the suspicious activity are not subjects and should not be recorded in a Part I section. Victim information, if necessary for a complete description of the suspicious activity, should be recorded in Part V. If the subject is or all subjects are unknown, complete a single Part I record with box 2b checked to show that all subject information was unavailable for critical Items 3, 4, 8, 9, 10, 11, 12, 13, 15, and 16. These critical items (denoted with an asterisk "**") except Item 24 must be blank. Record the nature of the unknown subject(s) in Part V. If the suspicious activity involves known and unknown subjects, complete a Part I section on each known subject and record the nature of the unknown subject(s) in Part V. Do not complete Part I records on the unknown subjects when there are known subjects.

2. Check:

- a. if entity
- b. if all critical* subject information is unavailable (does not include item 24)

Item 2a Check if entity: Check box 2a if the person described in Part I is an entity and not an individual.

Item 2b Check if all critical subject information is unavailable: Check box 2b if the information in Part I is unavailable for all critical subject items except Item 24. These critical items (3, 4, 8, 9, 10, 11, 12, 13, 15, and 16) and their associated "Unknown" fields must be left blank.

* 3. Individual's last name or entity's legal name

- a. (check if) unknown

Item *3 Individual's last name or entity's legal name: Enter the individual's last name or the entity's legal name. The legal name is the name on the articles of incorporation or other document that established the entity. Do not abbreviate names unless an abbreviation is part of the legal name. Item 3 and box 3 "Unknown" must be blank if box 2b is checked. Leave item 3

blank and check box 3 "Unknown" if the individual's last name or the entity's legal name is unknown and box 2b is not checked.

* 4. First name

a. *(check if)* unknown

Item *4 First name: Enter the individual's first name. If the first name is unknown leave item 4 blank and check box 4 "Unknown." Leave Item 4 and box 4 "Unknown" blank if box 2a or 2b is checked.

5. Middle name/initial

Item 5 Middle name/initial: Enter the individual's middle name or initial. Leave this item blank if the middle name or initial is unknown or box 2a is checked.

5. Suffix name

Item 5 Suffix name: Enter the individual's suffix such as JR, SR, III, etc. Leave this item blank if the suffix is unknown or the individual's legal name does not include a suffix.

5. Gender

a. *(Check if)* Male

b. *(Check if)* Female

c. *(Check if)* Unknown

Item 5 Gender: Select options 5a Male or 5b Female if individual's gender is known. Select option 5c "Unknown" if the individual's gender is unknown. Leave Item 5 blank if the subject is an entity. Item 5 (Gender) does not create an obligation for a financial institution to collect this data when such collection would be in conflict with the financial institution's obligations under any other federal law.

6. Alternate name, e.g. AKA - Individual or DBA - Entity

Item 6 Alternate name: Enter the individual's also known as (AKA) name or the entity's doing business as (DBA) name if different from the name entered in Items 3-5. Do not include the acronyms AKA or DBA with the name. Multiple Item 6 fields may be completed if multiple subject alternate names are known.

7. Occupation or type of business

a. NAICS Code

Item 7 Occupation or type of business: Record the occupation, profession, or type of business of the individual or entity recorded in Part I. Use specific descriptions such as doctor, carpenter,

attorney, used car dealership, plumber, truck driver, hardware store, etc. Do not use non-descriptive items such as businessman, merchant, retailer, retired, or self-employed. If words like self-employed, unemployed, or retired are used, add the current or former profession if known (e.g. self-employed building contractor, retired teacher, or unemployed carpenter). If the occupation or business activity can be described in more detail, include the additional information in Part V.

Item 7a NAICS Code: Select from the FinCEN-approved list the North American Industry Classification System (NAICS) code for the occupation or type of business entered in Item 7. Access the NAICS Code list from the BSA E-Filing Web Site (<http://bsaefiling.fincen.treas.gov/main.html>).

* 8. Address

a. *(check if)* unknown

Items *8 - *12 Subject address items: Enter the subject's permanent street address, city, two or three letter state/territory/province code (U.S./Canada/Mexico only), ZIP Code or foreign postal code, and two letter country code. Complete any address item that is known, even if the complete address is unknown. If an address item is unknown, leave that item blank and check box 8 "Unknown." If box 2b is checked all address items and check boxes must be blank. See General Instruction 7 for additional information on entering addresses. Multiple sets of address fields may be completed if multiple present and past subject addresses are known.

* 9. City

a. *(check if)* unknown

* 10. State

a. *(check if)* unknown

* 11. ZIP/Postal Code

a. *(check if)* unknown

* 12. Country Code

a. *(check if)* unknown

* 13. TIN *(enter number in space provided and check appropriate type below)*

a. *(check if)* unknown

Item *13 TIN: Enter the subject's U.S. taxpayer identification number (TIN) or foreign equivalent without formatting or punctuation. If the number is unknown, check box 13 "Unknown" and leave Item 13 blank. Leave item 13 and box 13 "Unknown" blank if box 2b is checked. See General Instruction 9 for information on entering identifying numbers.

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Revision History

Version Number	Date	Reason for Change
1.0	03/22/12	Updates electronic specification document title from “BSA Electronic Requirements for Bank Secrecy Act Currency Transaction Report (BSA CTR)” to “FinCEN Currency Transaction Report (FinCEN CTR) Electronic Filing Requirements.” All references to “BSA CTR” have been changed to “FinCEN CTR.” Updates Date of birth (Item 17) instructions, located in Attachment C – Electronic Filing Instructions, to include language that explains how to enter dates on a discrete file vs. a batch file (i.e. MM/DD/CCYY for discrete files; MMDDCCYY for batch files). Updates Date of transaction (Item 23) instructions, located in Attachment C – Electronic Filing Instructions, to include language that explains how to enter dates on a discrete file vs. a batch file (i.e. MM/DD/CCYY for discrete files; MMDDCCYY for batch files). Updates Date Filed (Item 42) instructions, located in Attachment C – Electronic Filing Instructions, to the following: “Item 42 Date filed: Enter the date a batch filed FinCEN CTR is filed in MMDDCCYY format where MM = month, DD = day, CC = century, and YY = year. Single digit days or months must be prefaced by a zero. This date will automatically be added to a discrete FinCEN CTR when a filer signs the FinCEN CTR.” Updates Financial Institution ID Number Type (Item 39) Description and Remarks to include the full description for each identification type (e.g. “CRD number” changed to “Central Registration Depository (CRD) number”) Updates TIN Type (Item 16) Description and Remarks to refer the filer to “Item 16 instructions in Attachment C for information on entering the “TIN Type” when “TIN Unknown” contains “X.”” Updates the Account Number (Cash-in) (4B) Record introductory paragraph to include the following statement: “There will be no 4B record associated with a FinCEN CTR in the file if there is no account number associated with the cash-in transaction(s) or no amount recorded in “Cash-In Amount” in the Person involved in Transaction(s) (4A) Record.” Updates the Account Number (Cash-out) (4C) Record introductory paragraph to include the following statement: “There will be no 4C record associated with a FinCEN CTR in the file if there is no account number associated with the cash-out transaction(s) or no amount recorded in “Cash-out Amount” in the Person involved in Transaction(s) (4A) Record.” Updates error code C414* in Attachment A – Error Code List to include the following explanation as to why the TIN entry is invalid: “Person TIN is an invalid number string such as all zeros, all nines, 123456789, or a U.S. TIN and not nine digits.”

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		Removes the phrase “or person state unknown” from error code C430 in Attachment A – Error Code List and replaces the reference to Field Position “732a” with “786-787.” Replaces the reference to “F07” error code with “F18” from the Error Categories introductory paragraph, located in Attachment B –Error Code Instructions. Added the following clarifying language to the Error Codes Description and Remarks (Acknowledgement Transmitter (1A) Record, pos. 30-119): “...Error codes associated with this record begin with a “T,” are 3 alphanumeric characters in length, and are left-justified...” Updates Total cash-in (Item 25) instructions, located in Attachment C – Electronic Filing Instructions, to include the following statement: “The total cash in will be automatically computed in BSA E-Filing discrete FinCEN CTR from the entries in 25a through 25i and 25z.” Deletes Attachment C – Field Editing Instructions and the data incorporated as General Instructions “15. Prohibited words and phrases” and “16. Name editing instructions” in Attachment D – Electronic Filing Instructions. Attachment D was then re-named Attachment C in all references to that attachment in the document. Updates Total cash-out (Item 27) instructions, located in Attachment C – Electronic Filing Instructions, to include the following statement: “The total cash out will be automatically computed in BSA E-Filing discrete FinCEN CTR from the entries in 27a through 27j and 27z.” Removes “Identification” from Financial Institution ID Number (Item 39) RSSD list option description, located in Attachment C – Electronic Filing Instructions (i.e. Item 39d is now “Research, Statistics, Supervision, and Discount (RSSD) number”) Updates error code F88 in Attachment A – Error Code List to remove the reference to “code” at the end of the error description. The updated description for F88 is now “The Transmitter Control Code (TCC) specified in the file is not a valid production TCC.” Removes reference to BSA E-Filing website for ISO information from the “Address” instructions located in Attachment C – Electronic Filing Instructions, as no such information is posted to the BSA E-Filing site at this time. Removes “alphanumeric” as an invalid form of entry for the Transmitter TIN in the 1A record, position 483-507. Removes error code C430 “Person state contains an entry and the person country code is not equal to CA, MX, or US” associated with Item 20 ID issuing state. Updates the location of the approved list of NAICS codes (Item 9) to http://bsaefiling.fincen.treas.gov/main.html. The change can be seen in the 4A record, position 449-454, as well as Attachment C – Electronic Filing Instructions.

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		Updates the Description and Remarks associated with the ID Issuing State (Item 20) in the 4A record (position 783-785) to the following: "REQUIRED (conditional). Enter the appropriate two or three character code when the identification was issued by a known state, province, or territory of the United States, Canada, or Mexico. See General Instruction 10 in Attachment D for information about the codes to be entered. Left justify and space-fill the entry. Space-fill this field if "ID Issuing Country" contains a country code other than "US," "CA," or "MX," or if "ID Type" contains "A."" Adds the following lead sentence to the General Instructions "16. Name Editing Instructions" of Attachment C – Electronic Filing Instructions: "When recording the name of an individual, a filer should enter the last name/family name or equivalent in a last name field, the first name or equivalent in the first name field, middle name or equivalent in the middle name field, and name suffix (such as JR, SR, III, etc) in the suffix field whenever these fields are provided." Updates Attachment C – Electronic Filing Instructions for Item 2 to include the following changes: "...Select option 2d if the transaction(s) were conducted by the agent of a private courier service such as an armored car company engaged by the person(s) involved in the transaction(s) and not by the reporting financial institution. In that case the information on the courier service's agent will be recorded in Part I (see FIN-2009-R002). Boxes 2a, 2b, and 2d cannot be checked if box 4b "If entity" is checked." Adds the following to General Instructions, located in Attachment C – Electronic Filing Instructions: "Items that do not begin with an asterisk must be completed if the data are known and will be left blank if the data are unknown. If an item's instructions differ from this general instruction, the item instructions must be followed." Updates the General Instructions associated with "9. Corrected or Amended Reports", located in Attachment C – Electronic Filing Instructions: • Changed "FinCEN Form 110" to "FinCEN Form 104." • Revised the fifth sentence to state, "Field 1d must contain the Document Control Number (DCN) or BSA Identifier (BSA ID) assigned to the prior filing." • Added this sentence to the end of General Instruction 9, "BSA IDs, which replaced DCNs, are provided in acknowledgement records sent to member financial institutions by the BSA E-Filing System." Updates the following Item Instructions, located in Attachment C – Electronic Filing Instructions: • Added to Item 1 "/BSA Identifier" to "d. Document Control Number." • Added the following sentences to the end of the Item 1 instructions: "Enter all zeros if the prior report DCN or BSA ID is unknown. The BSA ID is replacing the DCN in all future electronic filings." • Added a note to the instructions for Item 2 that states as follows:

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		“NOTE: If more than one Item 2 option applies to a person involved in the transaction(s), complete only one Part I on that person. If multiple options that include 2d “Courier service” apply, check the “Courier service” box. Check the box “Person conducting transaction on own behalf” if options 2a, 2b, and 2c or options 2a and 2c apply. If options 2b and 2c apply, check the box “Person conducting transaction for another.”” • In the Item 28 instructions changed all references to “26a” to “28a.”
1.1	09/19/2012	General Updates: • Financial Institution Where Transaction(s) Take Place (2B) Record The maximum number of 2B records that can be associated with a single currency transaction report has been increased from 99 to 999. • Person Involved in Transaction(s) (4A) Record The maximum number of 4A records that can be associated with a single currency transaction report has been increased from 99 to 999. • FinCEN CTR “report” Replaces the reference to the FinCEN CTR as a “form” with “report” throughout the document. • Acknowledgement File Format Updates the acknowledgement file format to include User Field values from incoming records. Updates to File Organization: • Financial Institution Where Transaction(s) Take Place (2B) Record Replaces “99” with “999” in the following sentence: “Filers are permitted to associate up to 999 2B records for a single currency transaction report.” • Person Involved in Transaction(s) (4A) Record Replaces “99” with “999” in the following sentence: “Filers are permitted to associate up to 999 4A records for a single currency transaction report.” Updates to Record Layouts: • Transmitter ZIP/Postal Code, Institution ZIP Code, and Items: 36/13 Updates the Description and Remarks to add the statement “or four nines” to the following sentence: “A nine-digit entry cannot end with four zeros or four nines ...” • Financial Institution Where Transaction(s) Take Place (2B) Record Updates to the introductory paragraph to add the following bold text: “The number of 2B records is dependent on the number of branches the Parent FI is reporting on the file; however, there can be no more the 999 2B records associated with a single CTR reported in the file.” • Primary Federal Regulator (Item 2) Updates the Description and Remarks to remove “where transaction(s) occurred.” • Alternate name, e.g., trade name, DBA (Item 31) Updates the Description and Remarks to add “Do not include “AKA”

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		or "DBA" with the alternate name." EIN (Item 32) Updates the Description and Remarks to replace "filer" with "financial institution" in the second sentence. Transaction Type (Item 24) Updates the Description and Remarks by replacing "Check all that apply" with "Multiple codes may be entered" and adding the sentence "See the Item 24 instructions in Attachment C for information on when to enter these codes." Middle Name and Name Suffix (Item 6) Updates the Description and Remarks by adding the following statement (in bold): "Space-fill if no entry or if "Person Involved is Entity" contains "X"." TIN (Item 15) Updates the Description and Remarks by adding the following statement (in bold): "Foreign TINs may be as long as 25-digits, with no formatting such as spaces, hyphens, or periods." ID Issuing State (Item 20) Updates the Description and Remarks by adding the following (in bold): "Space-fill this field if "ID Issuing Country" contains a country code other than "US," "CA," or "MX;" if the "ID Issuing State" is unknown; or if "ID Type" contains "A."" ID Issuing Country (Item 20) Updates the Description and Remarks by replacing the last sentence with the following: "Space-fill if "ID Type" contains "A" or if the "ID Issuing Country" is unknown." ID Number (Item 20) Updates the Description and Remarks by replacing the last sentence with the following: "Space-fill if "ID Type" contains "A" or if the "ID Number" is unknown." Attachment A – Error Code List: Field Positions and Form Field Number Updates the Field Positions column and Form Field Number column for the following error codes to include the "Unknown" fields as part of the validation: C402, C404, C405, C407, C408, C411, C413, C417. Also updates the Field Name Item number associated with the fields unknown option to include an "a" for the following fields: 4, 5, 10, 11, 12, 13, 14, 15, 17. Attachment B – Error Code List: Error Categories Replaces the statement "fatal errors that result" with "format errors that may result" in the first sentence of the section. Correction Requirements Adds the word "format" between "fatal" and "errors" in the first sentence of the section. Adds the phrase "from a rejected batch file" between "FinCEN CTRs" and "as corrected reports" in the last sentence of the first paragraph in the section.

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		Attachment C - Electronic Filing Instructions: • General Instructions (Item 16 Name Editing Instructions) Updates "16. Name Editing Instructions" to match the instructions in the FinCEN SAR and FinCEN DOEP. • Item Instructions (Item *1 Type of filing) Updates the following sentences to replace the reference to "FinCEN CTR" with "CTR": "Correct/amend prior report" if the report corrects or amends a previously-filed CTR. See General Instruction 9 for additional instructions on filing corrected or amended CTRs." Also, updates the second to last sentence to state, "Enter all zeros if the prior report DCN or BSA ID is unknown, for example when the prior report was a paper filing." • Item Instructions (Item 24) Updates the instructions for Item 24 as follows (see bold text): "Check box 24e "Aggregated transactions" if the financial institution did not identify any of the transactor(s) because the FinCEN CTR reports aggregated transactions, all of which were below the reporting requirement, and at least one of the aggregated transactions was a teller transaction." • Item Instructions (Items 25 Total cash in, and 27 Total cash out) Updates the instructions for Item 25 and 27 by inserting "total or" between "and" and "subtotals" in the second sentence. • Secure Data Transfer Mode Users Updates the instructions to include a section describing the naming convention information related to SDTM/System to System filers.
1.2	05/16/2013	Attachment C – Electronic Filing Instructions: • Item Instructions (Item 2) Adds the statement "Option 2b also cannot be selected if box 4b "If entity" is checked." Updates the instructions for option 2d to reference updated guidance on Armored Car Service (ACS). Updates the NOTE to include the following scenario: Select option 2a when options 2a and 2b apply. • Item Instructions (Part III Financial Institution Where Transaction(s) Takes Place) Adds batch file examples displaying sample batch file layouts based on different scenarios. Updates to Record Layouts: • Total Cash-in (Item 25) Updates the Description and Remarks to include as a new third sentence, "The amount must match the total of all amounts entered in Items 25a-z." • Cash-in (Items 25a-z) Updates the Description and Remarks to begin with "Required (conditional) and inserts the phrase "included in this report" between "amount" and "for" in the first sentence. • Total Cash-out (Item 27) Updates the Description and Remarks to include as a new third

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		sentence, “The amount must match the total of all amounts entered in Items 27a-z.” • Cash-out (Items 27a-z) Updates the Description and Remarks to begin with “Required (conditional) and inserts the phrase “included in this report” between “amount” and “for” in the first sentence.

Purpose

The purpose of this document is to provide the requirements and conditions for electronically filing the FinCEN Currency Transaction Report (FinCEN CTR). Electronic filing of this report will be through the BSA E-Filing System operated by the Financial Crimes Enforcement Network (FinCEN). For more information on the BSA E-Filing System and to register, please go to <http://bsaefiling.fincen.treas.gov>. This document should be used in conjunction with the “General Specifications for Electronic Filing of Bank Secrecy Act (BSA) Reports” (General Specifications) available at http://www.fincen.gov/forms/files/e-filing_GENspecs.pdf. It is recommended that you refer to the General Specifications first, and then the specific information contained in this document. If the General Specifications conflict with any specific requirement found in this document, the specific requirement should be followed. Additional instructions concerning the data to be entered in the electronic file are found in Attachment C – Electronic Filing Instructions.

Electronic Filing

The BSA E-Filing System Batch File Testing Procedures are detailed in a separate document that can be accessed on the BSA E-Filing System web site at <http://bsaefiling.fincen.treas.gov> under Quick Links. For purposes of this document, the filer is the organization responsible for filing the FinCEN CTR and the transmitter is the organization responsible for preparing the electronic files. The filer and transmitter may be the same or different organizations. Filers are required to retain a copy of the FinCEN CTR data and all original supporting documentation or business record equivalent for five years from the date of the report. All supporting documentation must be made available to appropriate authorities upon request.

File Organization

The following data controls must be followed or the FinCEN CTR electronic file will be rejected. The data records must be in the following sequence:

Transmitter (1A) Record – Required

There can only be one of this record type and it must be the first record on the file.

Parent Financial Institution Information (2A) Record – Required

There must be one of this record type for each Parent Financial Institution (FI) on the file. This record type immediately precedes all records related to the Parent FI.

Financial Institution Where Transaction(s) Take Place (2B) Record – Required

There must be at least one of this record type for each financial institution reporting under the Parent Financial Institution Information (2A) Record. This record type precedes all transaction records for the financial institution. Filers are permitted to associate up to 999 2B records for a single currency transaction report. Multiple 2B records must be grouped together prior to the associated Transaction Summary (3A) Record(s)

Transaction Summary (3A) Record – Required

There can only be one of this record type for each currency transaction or aggregated transactions being reported for the financial institution(s) identified in the associated 2B record(s). Filers are permitted to associate more than one currency transaction report with a single 2B record or a set of 2B records—assuming each financial institution where transaction(s) take place is the same for all associated currency transaction reports that follow. Foreign Cash-in (3B) Record and/or Foreign Cash-out (3C) Record will follow the 3A record if needed.

Foreign Cash-in (3B) Record

One or more of this record type may follow a Transaction Summary (3A) Record when one or more types of foreign (cash-in) currency are involved in the currency transaction. A maximum of 99 3B records may be associated with a single currency transaction report.

Foreign Cash-out (3C) Record

One or more of this record type may follow a Transaction Summary (3A) Record or Foreign Cash-in (3B) Record when one or more types of foreign (cash-out) currency are involved in the currency transaction. A maximum of 99 3C records may be associated with a single currency transaction report.

Person Involved in Transaction(s) (4A) Record – Required

There must be one of this record type for each person involved in the currency transaction(s). Filers are permitted to associate up to 999 4A records for a single currency transaction report. An Account Number (Cash-in) (4B) Record and/or Account Number (Cash-out) (4C) Record will follow the associated 4A record if needed.

Account Number (Cash-in) (4B) Record

One or more of this record type may follow the Person Involved in Transaction(s) (4A) Record when one or more account numbers are included in the cash-in for the person involved in the currency transaction(s). A maximum of 99 4B records may be associated with a Person Involved in Transaction(s) (4A) Record.

Account Number (Cash-out) (4C) Record

One or more of this record type may follow the Person Involved in Transaction(s) (4A) Record or Account Number (Cash-in) (4B) Record when one or more account numbers are included in the cash-out for the person involved in the currency transaction(s). A maximum of 99 4C records may be associated with a Person Involved in Transaction(s) (4A) Record.

Financial Institution Where Transaction(s) Take Place Summary (9A) Record – Required

There must be one 9A record for all Transaction Summary (3A) Records associated with one or more Financial Institution Where Transaction(s) Take Place (2B) Records.

Parent Financial Institution Information Summary (9B) Record – Required

There must be one of this record type for each Parent FI 2A record reported on the file.

File Summary (9Z) Record – Required

There must be one of this record type on the file and it must be the last record.